

CHAPTER 42.

An Act to enable schemes to be made for regulating the marketing of agricultural products; to confer powers upon boards and other bodies to be constituted in connection with, or acting for purposes connected with, such schemes; to establish agricultural marketing funds for the purpose of making loans thereout to the boards aforesaid; to encourage agricultural co-operation, research and education; and to provide for purposes connected with the matters aforesaid.

[31st July 1931.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Agricultural Marketing Schemes.

1.—(1) A scheme regulating the marketing of an agricultural product by the producers thereof may be submitted to the Minister in accordance with Part I of the First Schedule to this Act, and the Minister may, subject to the provisions of this section, approve the scheme.

Submission
and appro-
val of
schemes.

(2) A scheme submitted and approved as aforesaid may be applicable to Great Britain or to any part thereof.

(3) Before approving a scheme, the Minister shall cause to be published, in the Gazette and in such other manner as he thinks best for informing persons affected, notice of the submission of the scheme, of the place where copies thereof may be obtained (on payment of such fee as may be prescribed by the notice) and inspected, and of the time (which shall not be less than six weeks after such publication in the Gazette) within which objections and representations with respect to the scheme may be made.

(4) Every objection must be sent to the Minister in writing and must state the grounds of objection and the specific modifications required.

(5) The Minister, after considering any scheme duly submitted to him and any objections and representations duly made with respect thereto and after holding such inquiries (if any) as he thinks fit, may make such modifications in the scheme as he thinks proper :

Provided that—

(a) where an objection has been duly made to the scheme by any person affected thereby and has not been withdrawn, the Minister, unless he considers the objection to be frivolous, or unless he has modified the scheme as required by the objection, shall, before taking any further action under this section, direct a public inquiry to be held as hereinafter provided and consider the report of the person who held the inquiry; and

(b) no scheme shall be modified so as to be applicable to any area to which it would not have been applicable without modification; and

(c) before making any modifications, the Minister shall give notice of the proposed modifications to such persons (not being less than nine or more than twenty-one) as may be nominated for the purpose, at the time of the submission of the scheme, by the persons submitting the scheme, and unless, within four weeks after notice has been so given or such longer time as the Minister may allow, more than half the persons so nominated notify the Minister that they assent to the modifications, the Minister shall take no further action under this section.

(6) Any inquiry under this section shall be held in accordance with rules made by the Minister for the purpose by a competent and impartial person appointed by the Minister, and those rules may contain provisions as to the costs of the inquiry, and such expenses of any such inquiry as may be incurred by the Minister with the approval of the Treasury shall be defrayed out of moneys provided by Parliament.

(7) Any rules made by the Minister under the last foregoing subsection shall, as soon as may be after they are made, be laid before each House of Parliament, and if either House, within the next subsequent twenty-eight days on which that House has sat after any such rules are laid before it, resolves that the rules be annulled, the rules shall thenceforth be void, but without prejudice to anything previously done thereunder or to the making of new rules.

(8) If the Minister, after making such modifications (if any) as aforesaid, is satisfied that the scheme will conduce to the more efficient production and marketing of the regulated product, he may, after consultation with the Board of Trade, lay before each House of Parliament a draft of the scheme, and if each House resolves that the scheme shall be approved, the Minister shall make an order approving the scheme in terms of the draft, and the scheme shall (subject to the provisions of this Act) come into force on such date after the date of the passing of the last of such resolutions of approval as may be specified in the order, and the making of the order shall be conclusive evidence that the requirements of this Act have been complied with and that the order and the scheme approved thereby have been duly made and approved and are within the powers conferred by this Act.

(9) The Minister, on laying before either House of Parliament a draft of a scheme under the last foregoing subsection, shall at the same time—

- (a) in a case where the scheme is not a substitutional scheme, lay before that House a report as to the evidence by which he has been satisfied for the purpose of Part I of the First Schedule to this Act that the persons submitting the scheme were duly representative; or
- (b) in a case where the scheme is a substitutional scheme, lay before that House a report showing that the provisions of the proviso to Part I of that Schedule have been complied with.

(10) As soon as possible after making an order approving a scheme the Minister shall cause the order to be published in the Gazette, and in such other manner as he thinks best for informing persons affected.

(11) A scheme may be amended or revoked in accordance with the provisions of Part II of the First Schedule to this Act.

Constitution
of boards to
administer
schemes.

2.—(1) Every scheme shall provide for the registration of any producer who makes application for that purpose, and shall constitute a board to administer the scheme, which shall (subject to the provisions of the scheme as to the filling of casual vacancies) be composed of representatives of registered producers elected by them in such manner as may be provided by the scheme :

Provided that, during such period (not being longer than twelve months after the scheme comes into force) as may be specified in the scheme, the board shall, subject as aforesaid, be composed of persons named in the scheme and, except in the case of a substitutional scheme, two persons nominated by the Minister after consultation with the persons who submitted the scheme.

(2) The provisions of the Second Schedule to this Act shall apply with respect to the incorporation, registration and winding up of any such board.

Poll on
question
whether
scheme to
remain in
force.

3.—(1) Every scheme except a substitutional scheme shall require a poll of the registered producers to be taken, within such time as may be specified in the scheme, on the question whether the scheme shall remain in force.

(2) If the poll aforesaid shows that there have voted in favour of the scheme remaining in force—

- (a) not less than two-thirds of the total number of registered producers voting on the poll; and
- (b) registered producers who are capable of producing not less than two-thirds of the quantity of the regulated product which all the registered producers voting on the poll are capable of producing;

the provisions of the scheme, the operation of which is suspended (under the provisions hereafter contained in this Act) until the expiration of the suspensory period, shall come into force at the expiration of that period, but in any other case the scheme shall cease to have effect at the date on which the result of the poll is declared, and the provisions of paragraphs 7 and 8 of

•Part II of the First Schedule to this Act shall apply as if the scheme had been revoked :

Provided that, if it is proved to the satisfaction of the Minister at any time before the expiration of the suspensory period that the number of producers voting on the poll was less than half the total number of producers (excluding producers exempted, or entitled to exemption, from registration by or under the provisions of the scheme) he shall forthwith by order revoke the scheme.

(3) Every scheme shall provide for the manner in which polls are to be taken for the purposes of this Act, and in particular but without prejudice to the generality of the foregoing provision—

- (a) may apply with any necessary modifications any enactments (including the penal provisions thereof) relating to parliamentary or local government elections and to the prevention of corrupt and illegal practices thereat ;
- (b) may prescribe the manner in which the quantity of the regulated product which any registered producer is capable of producing is to be determined for the purposes of the poll ;
- (c) may prescribe the information relating to the regulated product, which is to be furnished by every registered producer before or at the time of voting, and the manner in which the information is to be furnished, and may require the rejection of the vote of any producer who fails to furnish the prescribed information in the prescribed manner, and may impose penalties for furnishing false information ;
- (d) shall prescribe the manner in which the result of the poll is to be declared and published.

(4) In the case of a scheme regulating the marketing of two or more separate products, this section shall apply subject to the following modifications, that is to say :—

- (a) references to a poll on the question whether the scheme shall remain in force shall be construed as references to a poll, in respect of each product, on the question whether the scheme shall remain in force so far as it applies to that product ;

- (b) subsection (2) shall apply, in relation to each poll, as if the provisions of the scheme, so far as they apply to the product in respect of which the poll is taken, were a separate scheme.

The question whether any product is to be treated as a separate product for the purpose of this subsection shall be determined by the provisions of the scheme.

(5) For the purposes of subsections (1) and (2) of this section, a person, who is registered as a producer notwithstanding that he has been exempted from registration by or under the provisions of the scheme, shall not be deemed to be a registered producer.

Information to be furnished for purposes of register.

4.—(1) As soon as practicable after any scheme (other than a substitutional scheme) comes into force the board shall cause to be published in such newspapers as the Minister may direct, being newspapers circulating within the area to which the scheme is applicable, a form of application for registration as a producer under the scheme, together with a notice stating—

- (a) the nature of the regulated product and the area to which the scheme is applicable;
- (b) the classes or descriptions of producers which are exempted from registration and the procedure required (if any) for securing such exemption;
- (c) that a poll of registered producers (other than producers exempted from registration) is to be taken in pursuance of this Act on the question whether the scheme shall remain in force;
- (d) that no person will be entitled to vote on the poll aforesaid unless he is registered within the time specified in the notice, but that no person so registered will, if it is decided as the result of the poll that the scheme shall not remain in force, incur any financial liability by reason of his registration;
- (e) that, if it is decided as a result of the poll that the scheme shall remain in force, every producer who is not registered or exempted from registration will be prohibited from selling the regulated product;

- (f) the place where copies of the scheme may be obtained on payment therefor;
- (g) such other particulars as the board may think fit.
- (2) The Minister, as soon as practicable after any scheme approved by him (other than a substitutional scheme) comes into force—
 - (a) shall cause a list to be compiled containing the names of all such persons as he has reason to believe are producers, together with their respective addresses so far as known to him, and forward a copy of the list to the board; or
 - (b) if it appears to him that he has so little information at his disposal that the list aforesaid would serve no useful purpose, shall inform the board accordingly.
- (3) Notwithstanding anything in the Agricultural Returns Act, 1925, any returns made under that Act may be used for the purpose of compiling the list aforesaid. 15 & 16
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- (4) As soon as practicable after receiving such a list as aforesaid the board shall send by post to every person named in the list, and to every other person who the board have reason to believe is a producer, being a person who is not registered as a producer, a notice addressed to him at his last known address, stating the particulars required to be stated in the notice published under subsection (1) of this section, together with a form of application for registration.
- 5. Subject to the approval of the Minister, a scheme may provide for all or any of the matters set out in one or more of the following paragraphs, that is to say:—
 - (a) for empowering the board to buy the regulated product, to produce such commodities from that product as may be specified in the scheme, and to sell, grade, pack, store, adapt for sale, insure, advertise and transport the regulated product and any commodity so produced by the board;
 - (b) for requiring registered producers to sell the regulated product or any kind, variety or grade thereof, or such quantity thereof or of any kind, variety or grade thereof as may from

Regulation
of market-
ing and
encourage-
ment of co-
operation,
education
and re-
search.

time to time be determined by the board, only to, or through the agency of, the board;

- (c) for empowering the board to buy, and to sell or let for hire to registered producers, anything required for the production, adaptation for sale, or sale of the regulated product;
- (d) for empowering the board to co-operate with any other person in doing anything which the board are or might be empowered to do by virtue of paragraph (a) or paragraph (c) of this section;
- (e) for empowering the board to regulate sales of the regulated product by any registered producer by determining for such period as may be fixed by the board on the occasion of each determination—
 - (i) the kind, variety or grade of the product which may be sold;
 - (ii) the price at, below or above which, the terms on which, and the persons to, or through the agency of, whom, the product or any kind, variety, grade or quantity thereof may be sold;
- (f) for regulating the manner in which the regulated product or any kind, variety or quantity thereof is to be graded by or on behalf of registered producers, or the manner in which the regulated product or any kind, variety, grade or quantity thereof is to be marked, packed, stored, adapted for sale, insured, advertised or transported by or on behalf of registered producers;
- (g) for empowering any person authorised in writing by the board, for the purpose of securing compliance with the scheme, to enter and inspect, at any reasonable time and on production of his authority, any part of the land or premises occupied by any registered producer (being a producer specified in the authority) which the person so authorised has reason to believe is used for producing the regulated product or for doing any of the following things which is regulated by the scheme, that is to say, grading, marking,

- packing, or storing the regulated product or adapting it for sale;
- (h) for requiring registered producers to furnish to the board such estimates, returns, accounts and other information relating to the regulated product as the board consider necessary for the operation of the scheme;
 - (i) for enabling the board to encourage agricultural co-operation, research and education:

Provided that, except in the case of a substitutional scheme, the operation of all the provisions of a scheme made in pursuance of this section shall be suspended until the expiration of the suspensory period.

6.—(1) Every scheme shall provide for the following matters, that is to say:—

- (a) for requiring that no sale of the regulated product shall be made by any producer who is not either a registered producer or a person exempted from registration by or under the provisions of the scheme;
- (b) for exempting from all or any of the provisions of the scheme producers and sales of such classes or descriptions as may be specified in the scheme or determined by the board;
- (c) for requiring the board to impose on, and recover from, any registered producer who contravenes any provision of the scheme made in pursuance of the last foregoing section, such monetary penalties as may be specified by the scheme, so however that no such penalty shall be imposed in respect of a contravention of the scheme which constitutes an offence under any other Act;
- (d) for securing that any producer who is aggrieved by any act or omission of the board may refer the matter to one or more arbitrators appointed in such manner as may be provided by the scheme, and for the manner in which any such reference is to be heard and determined;
- (e) for requiring the register of producers to be open for inspection at such times as may be specified by the scheme, and for requiring the board to furnish a copy of the register or any part thereof to any person demanding it, on

Miscellaneous provisions of schemes.

payment of such fee as may be specified by the scheme;

(f) for the additional matters set out in the Third Schedule to this Act :

Provided that, except in the case of a substitutional scheme, the operation of the provisions of a scheme made in pursuance of paragraphs (a) and (c) of this subsection shall be suspended until the expiration of the suspensory period.

(2) Every scheme may further provide for such matters as are incidental to or consequential on the provisions of this Act relating to the contents of schemes or are necessary for giving effect to those provisions :

Provided that no provision of a scheme made in pursuance of this subsection shall be deemed to empower the board to establish any market or slaughter-house, unless that provision in terms confers on the board a specific power to establish markets or slaughter-houses, as the case may be.

(3) Any producer who sells the regulated product in contravention of the provisions of a scheme made in pursuance of paragraph (a) of subsection (1) of this section shall for each offence be liable on summary conviction to a fine not exceeding five pounds or on conviction on indictment to a fine not exceeding two hundred pounds, and in either case to an additional fine not exceeding half the price at which the product was sold :

Provided that the fines imposed on summary conviction for any offence under this subsection shall not exceed in the aggregate one hundred pounds.

(4) Where any court imposes a fine for an offence under the last preceding subsection, the court may, if it thinks fit, having regard to the prejudicial effect which the commission of the offence has had or is likely to have on the operation of the scheme, direct the whole or any part of the fine to be paid to the board.

Financial
powers and
duties of
boards.

7.—(1) Every scheme shall provide for the following matters, that is to say :—

(a) for the establishment of a fund (hereafter in this section referred to as “the fund”) to be administered and controlled by the board, for the payment into the fund of all moneys received

by the board, and for the payment out of the fund of any moneys required by the board for the operation of the scheme;

- (b) for enabling the board to recover from every registered producer contributions to the fund of such amounts as may be necessary for the operation of the scheme, and for the assessment of the contributions of each producer in such manner and subject to such limitations as may be provided by the scheme;
- (c) for requiring the board to pay out of the fund such sums by way of compensation as may be necessary for securing that the provisions of the scheme operate equitably as between all registered producers, and for the distribution to registered producers, in proportion to their respective contributions to the fund, of all moneys standing to the credit of the fund which are not required for the operation of the scheme;
- (d) for empowering the board to borrow money for the purpose of exercising their functions under the scheme.

(2) Any scheme may empower the board—

- (a) to lend to any registered producer a portion of the amount which the board estimate that he will receive from the sale of any quantity of the regulated product produced or in course of production by him;
- (b) to guarantee payment of any sums secured by an agricultural charge created by a registered producer under Part II of the Agricultural Credits Act, 1928.

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(3) The operation of the provisions of a scheme made in pursuance of paragraphs (b) and (c) of subsection (1) or in pursuance of subsection (2) of this section shall, except in the case of a substitutional scheme, be suspended until the expiration of the suspensory period.

(4) A debenture issued by the board may create in favour of a bank a floating charge on any farming stock in England the property in which is vested in the board, and any such charge shall be registered in like

manner as an agricultural charge under Part II of the Agricultural Credits Act, 1928, and section nine of that Act shall apply to such a charge in like manner as it applies to an agricultural charge, and the charge, if so registered, shall, as respects such property, be valid notwithstanding anything in the Bills of Sale Acts, 1878 and 1882, and shall not be deemed to be a bill of sale within the meaning of those Acts.

In this subsection the expressions "bank" and "farming stock" have the same meanings respectively as in Part II of the Agricultural Credits Act, 1928.

Effect of
schemes on
contracts.

8.—(1) Subject as hereinafter provided, a contract of which neither the making nor the performance was, at the time when the contract was made, prohibited by or under any scheme in force under this Act, shall not, unless the terms of the contract otherwise provide, be void or unenforceable by reason that, at the time for the performance of any provision of the contract, the performance thereof is so prohibited :

Provided that, where the performance of any such contract made during the relevant period is prohibited by or under any such scheme, the foregoing provision shall cease to apply to that contract upon the expiration of three months after the prohibition first takes effect, unless the contract is registered under this section.

For the purposes of this subsection, the expression "the relevant period", in relation to a scheme, means a period beginning twelve months before the date when notice of the submission of the scheme was published in the Gazette and ending six months after the expiration of the suspensory period, or, in the case of a substitutional scheme, ending six months after the date when the scheme comes into force.

(2) It shall be the duty of the board, on the application of any party to a contract, to register the contract within the period of fourteen days after the application, unless the board are of opinion that the contract was made with a view to evading the operation of the scheme, and if any party to a contract is aggrieved by the omission of a board to register the contract within the period aforesaid, he may, within twenty-one days after the expiration of that period, appeal to the Court, and,

pending the determination of any such appeal, subsection (1) of this section shall, notwithstanding anything in the proviso thereto, continue to apply to the contract.

(3) On any appeal under this section, the board concerned and any party to the contract may appear and be heard, and if, on the hearing of any such appeal, the contract is found by the Court not to have been made with a view to evading the operation of the scheme, the Court shall by order direct the registration thereof, and thereupon the contract shall be deemed to have been registered as from the date of the order; but, where the Court does not direct the registration of a contract, any party to the contract certified by the Court to have entered into the contract bona fide without a view to the evasion of the operation of the scheme may recover the amount of any damage suffered by him by reason of the avoidance of the contract from any party certified by the Court to have entered into the contract with a view to such evasion as aforesaid.

(4) For the purposes of an appeal under this section with respect to any contract, the Court shall be any county court within the district of which any party to the contract has dwelt or carried on business at any time during the period within which the appeal may be brought:

Provided that—

(a) if, before proceedings in respect of any such appeal are commenced in the county court, the board and all parties to the contract agree that the appeal should be heard by the High Court, the High Court shall be the Court for the purposes of the appeal; and

(b) section one hundred and twenty-six of the County Courts Act, 1888, (which provides 51 & 52 Vict. c. 43. for the removal of matters from the county court to the High Court) shall apply with respect to any appeal under this section as if the appeal were a matter commenced in the county court under that Act.

(5) No person shall be liable to any penalty in respect of a contravention of any scheme in force under this

Act, if he proves that the contravention was necessary for the performance of a contract which, by reason of the foregoing provisions of this section, was not, at the time of the contravention, void or unenforceable.

Consumers'
committees
and com-
mittees of
investiga-
tion.

9.—(1) The Minister shall appoint two committees (hereinafter in this Act referred to as “a consumers’ committee” and “a committee of investigation”) for Great Britain, England and Scotland respectively :

Provided that no such committee shall be appointed for Great Britain unless a scheme applicable both in England and in Scotland remains in force after the expiration of the suspensory period, and no such committee shall be appointed for England or Scotland unless a scheme applicable in England or Scotland, as the case may be, remains in force after the expiration of the suspensory period.

(2) A consumers’ committee shall—

(a) consist of a chairman and of not less than six other members, who shall be such persons as appear to the Minister, after consultation with the Board of Trade and, as to one member, with the Co-operative Union, to represent the interests of the consumers of all the products the marketing of which is for the time being regulated by schemes approved by the Minister; and

(b) be charged with the duty of considering and reporting to the Minister on—

(i) the effect of any scheme approved by the Minister, which is for the time being in force, on consumers of the regulated product; and

(ii) any complaints made to the committee as to the effect of any such scheme on consumers of the regulated product.

(3) A committee of investigation shall—

(a) consist of a chairman and four other members; and

(b) be charged with the duty, if the Minister in any case so directs, of considering, and reporting to the Minister on, any report made by a consumers’ committee and any complaint made to the Minister as to the

operation of any scheme which, in the opinion of the Minister, could not be considered by a consumers' committee under the last foregoing subsection.

(4) For the purpose of enabling any committee appointed under this section to consider any matter which it is their duty under this section to consider, the board administering the scheme to which the matter relates shall furnish the committee with such accounts and other information relating to the affairs of the board as the committee may reasonably require, and shall be entitled to make representations to the committee with respect to the matter in such manner as may be prescribed by the regulations made by the Minister under this Act with respect to the procedure of the committee.

(5) If a committee of investigation reports to the Minister that any provision of a scheme or any act or omission of a board administering a scheme is contrary to the interest of consumers of the regulated product, or is contrary to the interest of any persons affected by the scheme and is not in the public interest, the Minister, if he thinks fit so to do after considering the report and consulting the Board of Trade—

- (a) may by order make such amendments in the scheme as he considers necessary or expedient for the purpose of rectifying the matter;
- (b) may by order revoke the scheme;
- (c) in the event of the matter being one which it is within the power of the board administering the scheme to rectify, may by order direct the board to take such steps to rectify the matter as may be specified in the order, and thereupon it shall be the duty of the board forthwith to comply with the order:

Provided that—

- (i) every order under paragraph (a) or paragraph (c) of this subsection shall, as soon as may be after it is made, be laid before each House of Parliament, and if either House, within the next subsequent twenty days on which that House has sat after any such

order is laid before it, resolves that the order shall be annulled, the order shall thenceforth be void, but without prejudice to anything previously done thereunder or to the making of a new order; and

- (ii) an order under paragraph (b) of this subsection shall not take effect unless and until it has been approved by a resolution passed by each House of Parliament; and
- (iii) before taking any action under this subsection, the Minister shall give the board administering the scheme notice of the action which he proposes to take and shall consider any representations made by the board within fourteen days from the date of the notice.

(6) In considering for the purpose of this Act whether any person represents the interests of consumers of any product, or whether any provision of a scheme or any act or omission of the board administering a scheme is contrary to the interests of consumers of any product, regard shall be had to the interests of persons who purchase the product, or commodities produced wholly or partly therefrom, for their own consumption or use and not to the interests of persons who purchase the product, or such commodities as aforesaid, for the purpose of any trade or industry carried on by them.

Report to
be laid
before
Parliament.

10. The Minister of Agriculture and Fisheries and the Secretary of State for Scotland shall, in the year nineteen hundred and thirty-three and in each subsequent year, lay before Parliament a report—

- (a) upon the operation of all the schemes for the time being in force under this Act; and
- (b) upon the schemes which have been submitted to them since the last report was laid before Parliament under this section or, in the case of the first report, since the commencement of this Act, but which have not come into force at the date of the report.

Agricultural Marketing Funds.

Agricultural
Marketing
Funds.

11.—(1) For the purpose of making loans to boards administering schemes under this Act, there shall be

established and maintained a fund to be called "the Agricultural Marketing Fund" (hereinafter referred to as "the English fund"), which shall be administered and controlled by the Minister of Agriculture and Fisheries, and a fund to be called "the Agricultural Marketing (Scotland) Fund" (hereinafter referred to as "the Scottish fund"), which shall be administered by the Department of Agriculture for Scotland acting under the control and direction of the Secretary of State for Scotland.

(2) There shall be paid, out of moneys provided by Parliament, into the English fund such sums, not exceeding in the aggregate five hundred thousand pounds, and into the Scottish fund such sums, not exceeding in the aggregate one hundred and twenty-five thousand pounds, as Parliament may from time to time determine.

(3) Any such loan as aforesaid shall be made—

- (a) in the case of a scheme applicable both in England and in Scotland, out of both the English and the Scottish funds in such proportion as may be determined by the Minister;
- (b) in the case of a scheme applicable only in England, out of the English fund;
- (c) in the case of a scheme applicable only in Scotland, out of the Scottish fund.

(4) Any sums received by way of interest on any such loan as aforesaid shall be paid to the Treasury, and any sums received by way of repayment of the principal of any such loan shall be paid into the fund out of which the loan was made or, in the case of a loan made out of both funds, into each fund in proportion to the amount of the principal lent thereout.

(5) If, in the opinion of the Treasury, a sum representing the whole or any part of the principal of any such loan as aforesaid is not likely to be recovered, the Treasury may direct that that sum shall be written off the account of the assets of the fund out of which the loan was made or, in the case of a loan made out of both funds, written off the account of the assets of each fund in proportion to the sum lent thereout, and there may, in addition to the sums hereinbefore mentioned, be paid into the fund out of moneys

provided by Parliament an amount equal to the sum so written off, but, if any sum is received by way of repayment of the principal of a loan after it has been so written off as aforesaid, that sum shall, instead of being paid into the fund or funds out of which the loan was made, be paid to the Treasury.

(6) The Minister shall cause an account to be prepared and transmitted to the Comptroller and Auditor General for examination on or before the thirtieth day of November in every year, showing the receipts into and issues out of the English and Scottish funds respectively in the financial year ending on the thirty-first day of March preceding, and, in a case where during that year a sum has been written off the account of the assets of the fund, giving the reasons why it appears that that sum is not likely to be recovered, and the Comptroller and Auditor General shall certify and report upon the account, and the account and report shall be laid before Parliament by the Treasury on or before the thirty-first day of January in the following year, if Parliament is then sitting, or, if Parliament is not then sitting, within one week after Parliament is next assembled.

Agricultural
Marketing
Facilities
Committees.

12. There shall be appointed by the Minister, after consultation with the Treasury, an Agricultural Marketing Facilities Committee for England and an Agricultural Marketing Facilities Committee for Scotland, and the Minister shall appoint from the members of the said committees an Agricultural Marketing Facilities Committee for Great Britain, and it shall be the duty of the said committees respectively to consider, and make recommendations with respect to, the making and renewal of loans out of the said funds to boards administering schemes applicable only in England, applicable only in Scotland and applicable both in England and in Scotland.

Short-term
loans.

13.—(1) The Minister may, on the recommendation of the appropriate Agricultural Marketing Facilities Committee, make to the board administering any scheme approved under this Act a loan of such amount as he thinks necessary for the purpose of providing for expenses incurred in connection with the initial working of the scheme :

Provided that (except in the case of a substitutional scheme) a loan of such amount as the Minister thinks necessary for the purpose of providing for expenses incurred in connection with the initial poll may be made without any such recommendation as aforesaid.

(2) A loan under this section shall be repaid within two years, unless it is renewed as hereinafter provided, and may be made free of interest during any period before renewal, and every such loan shall be made on such other terms as the Minister, with the approval of the Treasury, may by regulations prescribe :

Provided that, where a scheme ceases to have effect at or before the expiration of the suspensory period, the amount repayable in respect of any such loan made to the board shall be reduced by the amount of any sums expended by the board under the scheme, or required for the payment of any debt or liability incurred thereunder by the board.

(3) A loan under this section shall not be renewed unless the renewal is recommended by the appropriate Agricultural Marketing Facilities Committee, and that committee shall not recommend the renewal, unless they are satisfied that the board are in a position to repay the loan forthwith, that the renewal is required to provide for additional services which the board propose to undertake and that adequate arrangements have been, or will be, made to repay the loan at the expiration of the period for which it is to be renewed.

14. If, in the opinion of the Minister, it is expedient that there should be made to any board a loan which shall not be repayable until the expiration of a period exceeding two years, he may, on the recommendation of the appropriate Agricultural Marketing Facilities Committee, lend to that board such sums as he thinks fit, and every such loan shall be made on such terms and secured in such manner as the Minister, with the approval of the Treasury, may by regulations prescribe :

Long-term
loans.

Provided that the amount outstanding of the loans made under this section shall not at any time exceed in the aggregate one hundred thousand pounds, in the case of the English fund, or fifty thousand pounds, in the case of the Scottish fund.

Agricultural Marketing Reorganisation Commissions.

Constitution
and
functions
of Agricultural
Marketing
Reorganisa-
tion Com-
missions.

15.—(1) The Minister may constitute one or more Agricultural Marketing Reorganisation Commissions for Great Britain, England or Scotland, which shall be charged with the duty of preparing, in accordance with the provisions of this Act, schemes (applicable respectively both in England and Scotland, in England only and in Scotland only) for regulating the marketing of such agricultural products as the Minister may direct; and where any scheme has been prepared by such a Commission, the Minister shall take such steps as he thinks fit to bring the scheme to the notice of the producers concerned.

(2) Any such Commission may, and shall if the Minister so directs, investigate any matter affecting the operation of a scheme prepared or in course of preparation by it, and shall, if the Minister so directs, investigate any matter affecting the operation of any other scheme, and may, and shall in a case where the Minister has directed the investigation to be held, make such recommendations with respect to the matter investigated as it thinks expedient, and in particular, but without prejudice to the generality of the foregoing provisions, any such Commission may, and shall if the Minister so directs—

- (a) investigate the extent to which the operation of the scheme can be facilitated by co-operation between the board administering the scheme and other persons, and make such recommendations as the Commission thinks expedient for promoting such co-operation;
- (b) investigate the extent to which the operation of the scheme is or will be hampered by the fact that facilities for producing commodities from the product to which the scheme relates or for distributing that product or commodities produced therefrom are inadequate, and make such recommendations as the Commission thinks expedient for securing the improvement of those facilities either by co-ordinating undertakings engaged in providing those facilities or otherwise;

and where any recommendations have been made under this subsection, the Minister shall take such steps as he thinks fit to bring such recommendations to the notice of persons concerned.

(3) Every such Commission shall consist of a chairman and four other members appointed by the Minister.

(4) Every such Commission may hold such inquiries as it considers necessary or desirable for the discharge of its functions under this section.

(5) If any such Commission reports to the Minister—

(a) that it is necessary for the discharge of its functions under this section that it should inquire into a definite matter specified in the report, being a matter relating to the place of origin, use, channels of distribution, or destination of any agricultural product or of any commodity produced from such a product, or to the quantity of any such product or commodity which is being or has been produced, sold or otherwise dealt with; and

(b) that it has reason to believe that information with respect to that matter is being, or is likely to be, withheld;

the Minister may lay before each House of Parliament the draft of an order providing that, in respect of any meeting of the Commission held for the purpose of inquiring into that matter, at which not less than three members of the Commission are present, the Tribunals of Inquiry (Evidence) Act, 1921, shall apply to the Commission as if it were a tribunal established in manner provided by that Act and as if that Act had been applied thereto in manner thereby provided, and unless either House, before the expiration of twenty days on which that House has sat next after the draft is laid before it, resolves that the order shall not be made, the Minister may make an order in terms of the draft to take effect on such date after the expiration of the said period as may be specified in the order:

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Geo. 5. c. 7.

Provided that, where the said Act is applied to a Commission in pursuance of this subsection, the Commission shall, notwithstanding anything in paragraph (a) of section two of that Act, refuse to allow the public, or any portion of the public, to be present while any

evidence is being given by any witness summoned before the Commission under that Act.

Supplementary.

General provisions as to commissions and committees.

16.—(1) The Minister may appoint a secretary to any commission or committee constituted or appointed under this Act, and every such commission or committee may employ such officers, agents and servants as the Minister may, with the approval of the Treasury, determine.

(2) The Minister may pay such remuneration to the chairman and other members and the secretary, officers, agents and servants of any such commission or committee, and such other expenses of any such commission or committee, as the Minister may, with the approval of the Treasury, determine.

(3) The chairman and other members of every such commission or committee shall be appointed by the Minister for such period and subject to such conditions as may be determined by him, and the meetings and procedure of any such commission or committee shall be regulated in accordance with regulations made by the Minister for the purpose, and every such commission or committee shall have power to act notwithstanding any vacancy among the members thereof.

(4) Any regulations made by the Minister under this section shall, as soon as may be after they are made, be laid before each House of Parliament, and if either House, within the next subsequent twenty-eight days on which that House has sat after any such regulations are laid before it, resolves that the regulations be annulled, the regulations shall thenceforth be void, but without prejudice to anything previously done thereunder or to the making of new regulations.

(5) Any expenses incurred by the Minister under this section shall be defrayed out of moneys provided by Parliament.

Restrictions on disclosing information obtained under Act.

17.—(1) No information with respect to any particular undertaking (other than the undertaking of a board) shall, without the consent of the owner of that undertaking, be included in any report laid before Parliament in pursuance of this Act or in any recommendations of an Agricultural Marketing Reorganisation Commission published in pursuance of this Act.

(2) Any person who discloses any information obtained by him in the exercise of any power conferred on him by or under the provisions of this Act relating to polls, or in the exercise of any power conferred by or under this Act on any board, consumers' committee, committee of investigation, or Agricultural Marketing Reorganisation Commission, shall be liable on conviction on indictment to imprisonment for a term not exceeding two years or a fine not exceeding one hundred pounds or to both such imprisonment and fine, or on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds or to both such imprisonment and fine :

Provided that nothing in this section shall apply to the disclosure of any information in so far as it is required to be disclosed for the purposes of legal proceedings (including arbitrations) under this Act or any scheme made thereunder, or for the purpose of any report of such proceedings, or in so far as the disclosure is required or authorised by this Act, or any scheme made thereunder.

18.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them :— Interpre-
tation.

“Agricultural product” includes any product of agriculture or horticulture and any article of food or drink wholly or partly manufactured or derived from any such product, and fleeces and the skins of animals :

“Board” means a board administering a scheme under this Act and, in relation to any scheme, means the board administering that scheme :

“Contravention” includes non-compliance, and the expression “contravene” shall be construed accordingly :

“Gazette” means—

- (a) in relation to a scheme applicable only in England, the London Gazette ;
- (b) in relation to a scheme applicable only in Scotland, the Edinburgh Gazette ;
- (c) in relation to any other scheme, the London Gazette and the Edinburgh Gazette :

“Initial poll”, in relation to a scheme, means the first poll of registered producers taken on the question whether that scheme shall remain in force :

“Minister ” means—

(a) in relation to a scheme applicable both in England and in Scotland, or in relation to the Agricultural Marketing Facilities Committee, consumers’ committee or committee of investigation for Great Britain, or in relation to an Agricultural Marketing Reorganisation Commission for Great Britain, both the Minister of Agriculture and Fisheries and the Secretary of State for Scotland acting in conjunction ;

(b) in relation to a scheme applicable only in England, or in relation to the English fund, or in relation to the Agricultural Marketing Facilities Committee, consumers’ committee or committee of investigation for England, or in relation to an Agricultural Marketing Reorganisation Commission for England, the Minister of Agriculture and Fisheries ;

(c) in relation to a scheme applicable only in Scotland, or in relation to the Scottish fund, or in relation to the Agricultural Marketing Facilities Committee, consumers’ committee or committee of investigation for Scotland, or in relation to an Agricultural Marketing Reorganisation Commission for Scotland, the Secretary of State for Scotland :

“Producer ” means, in relation to any scheme, any person who produces the regulated product :

“Registered producer ” means, in relation to any scheme, a producer registered under the scheme :

“Regulated product ” means, in relation to any scheme, any product the marketing of which is regulated by the scheme, but does not (except in the expression “consumers of the regulated product”) include any product in so far as it is produced outside the area to which the scheme is applicable :

“Substitutional scheme” means a scheme which revokes one or more existing schemes, and is such that at the time when it comes into force—

(a) every person is entitled to be registered as a producer thereunder who was entitled to be registered as a producer under the existing scheme or one or more of the existing schemes; and

(b) no person is entitled to be registered as a producer thereunder who was not entitled to be registered as a producer under the existing scheme or any of the existing schemes :

“Suspensory period”, in relation to a scheme, means a period beginning on the date when the scheme is approved and ending at the expiration of such period (not being less than one month or more than two months), commencing on the date of the declaration of the result of the initial poll, as may be provided by the scheme.

(2) A declaration by the Minister, contained in an order approving a scheme, that the scheme is a substitutional scheme shall be conclusive evidence of that fact.

(3) For the purposes of a scheme regulating the marketing of live stock of any kind, every person whose business it is to keep live stock of that kind for the purpose of breeding from it or selling it in an improved condition shall (except in so far as the scheme otherwise provides) be deemed to produce it.

19. This Act shall apply to Scotland subject to the following modifications :— Application
to Scotland.

(1) The following subsection shall be substituted for subsection (4) of section seven:—

“(4) It shall be lawful for the board to create by instrument in writing in favour of a bank a charge on all or any of the agricultural produce in Scotland from time to time belonging to, and in the possession of, the board, as security for sums advanced or to be advanced to the board or paid or to be paid on its behalf under any

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Geo. 5. c. 13.

guarantee by the bank, and interest, commission and charges thereon, and the provisions of Part II of the Agricultural Credits (Scotland) Act, 1929, shall apply to any charge created in pursuance of this subsection in like manner as they apply to an agricultural charge.

In this subsection the expressions ‘bank’ and ‘agricultural produce’ have the same meanings respectively as in the Agricultural Credits (Scotland) Act, 1929.”

(2) For any reference in this Act to the High Court there shall be substituted a reference to the Court of Session, and for any reference therein to a county court or to the district of a county court there shall be substituted a reference to the sheriff or to the jurisdiction of the sheriff, and for paragraph (b) of the proviso to subsection (4) of section eight the following paragraph shall be substituted:—

“(b) it shall be lawful for the Court of Session, on the application of the board or of any party to the contract, to require any appeal to the sheriff court under this section to be remitted to the Court of Session.”

(3) If an agricultural society satisfies the Secretary of State for Scotland—

(a) that its members are substantially representative of the persons who produce an agricultural product in an area in Scotland, having regard both to the number of persons so represented and to the quantity of the product produced by them in the area; and

(b) that the society has made with each of its members who is a producer of the product in the area a contract binding him for a specified period not to sell the product produced by him otherwise than through the agency or with the written consent of the society;

any scheme made in pursuance of this Act for the area regulating the marketing of the product may, in lieu of constituting a board in accordance with section two of

this Act, provide that the governing body of the agricultural society shall be the board for the purposes of such scheme :

Provided that the Secretary of State, before approving a scheme containing any such provision, shall have regard to the interests of all producers of the product in the area, whether members of the agricultural society or not.

(4) Where a scheme provides that the governing body of an agricultural society shall be the board for the purposes of the scheme, the following provisions shall have effect :—

- (a) every member of the society who is a producer of the product within the area shall be deemed to be a registered producer;
- (b) there shall be added to the governing body of the society representatives of the registered producers who are not members of the society in such numbers as may be provided by the scheme, provided that such representatives shall not be members of the governing body for any purposes except the purposes of this Act;
- (c) nothing in the provisions of this Act shall render the fund referred to in section seven liable for any contracts of the governing body other than contracts entered into for the purpose of the operation of the scheme, and the said fund shall not be applied directly or indirectly except for such purpose, and nothing in the said provisions shall render the funds or property of the society liable for any contracts entered into by the governing body for such purpose as aforesaid, and such funds or property shall not be applied directly or indirectly for such purpose;
- (d) nothing in the provisions of this Act with regard to the winding up of a board shall affect or apply to the society or the governing body except in its capacity as a board, or impose any liability on any member of the society except as a registered producer;

- (e) the provisions of this Act with regard to boards (other than those relating to the composition thereof) shall apply to the governing body subject to the foregoing and to any other necessary modifications.

(5) A contract by a member of an agricultural society binding him for a specified period not to sell a product produced by him otherwise than through the agency or with the written consent of the society or of the governing body thereof shall not be held to be in restraint of trade or to be illegal on that ground; and it shall be lawful for a member of such a society to create by instrument in writing in favour of the society or of the governing body thereof a charge over any product which he is under contract to sell through the agency of the society or of the governing body thereof as security for sums advanced or to be advanced to him in anticipation of the payment of the sums received for the sale of the product.

The provisions of sections five, six, seven and eight of the Agricultural Credits (Scotland) Act, 1929, shall apply with the necessary modifications to charges created in terms of this paragraph.

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Geo. 5. c. 10.

(6) No benefit that may accrue to a landholder or a statutory small tenant, or other occupier of an agricultural holding from the operation of this Act shall be taken into account by the land court in fixing a fair or an equitable rent under the Small Landholders (Scotland) Acts, 1886 to 1919, or by an arbiter in determining for the purposes of section twelve of the Agricultural Holdings (Scotland) Act, 1923, what rent is properly payable in respect of a holding.

(7) (a) It shall be lawful for the Secretary of State for Scotland in lieu of constituting an Agricultural Marketing Reorganisation Commission to provide, by order, for the vesting of any powers and duties conferred on such Commissions by this Act, in an existing organisation formed for the purpose of promoting agricultural co-operation in Scotland, or in the governing body of such organisation: Provided that no Order under this subsection shall come into operation until it has lain before each House of Parliament for a period of twenty days on which that House has sat, and if a resolution

disapproving the order is passed by either House within the said period, the order shall be null, without prejudice, however, to the making of a new order, and provided further that no such order shall be made without the consent of the organisation to which it relates.

(b) An order under this subsection may direct that the provisions of this Act or any of them with regard to such a Commission shall apply to the organisation to which the order relates or to the governing body thereof, subject to such modifications as may be prescribed in the order, and may, with the approval of the Treasury, direct that the expenses incurred by the organisation or governing body in carrying out any powers or duties imposed on it by the order shall, in lieu of being met in the manner provided by this Act with regard to such Commissions, be met out of an annual grant to the organisation or governing body of such amount as may from time to time be determined by the Treasury, and any such grant shall be defrayed out of moneys provided by Parliament.

(8) In this section—

“agricultural society” means a society or company registered under the Industrial and Provident Societies Acts, 1893 to 1928, or under the Companies Act, 1929, having for its object or one of its objects the sale on behalf of its members of any agricultural product. 19 & 20
Geo. 5. c. 23.

“governing body,” in the case of a society registered under the Industrial and Provident Societies Acts, 1893 to 1928, means the committee of management or other directing body of the society and, in the case of a company registered under the Companies Act, 1929, means the directors.

20.—(1) This Act may be cited as the Agricultural Marketing Act, 1931. Short title
and extent.

(2) This Act shall not extend to Northern Ireland.

SCHEDULES.

Sections 1
and 3.

FIRST SCHEDULE.

SUBMISSION, AMENDMENT AND REVOCATION OF SCHEMES.

PART I.

SUBMISSION OF SCHEMES.

A scheme regulating the marketing of an agricultural product may be submitted by any persons who satisfy the Minister that they are substantially representative of the persons who produce that product in the area to which the scheme is applicable, and, for the purpose of satisfying himself as aforesaid, the Minister shall have regard both to the number of persons represented and to the quantity of the product produced by them in that area during some recent period before the scheme is submitted :

Provided that a substitutional scheme shall be treated for the purpose of the submission thereof to the Minister as if it were an amendment of every scheme revoked thereby, and sub-paragraphs (a), (b), and (d) of paragraph one of Part II. of this Schedule shall apply accordingly.

PART II.

AMENDMENT AND REVOCATION OF SCHEMES.

1. An amendment of a scheme may be submitted by the board to, and approved by, the Minister in accordance with the following provisions of this paragraph, namely :—

(a) an amendment may be submitted to the Minister—

(i) if the amendment has previously been published in the prescribed manner to all registered producers ; and

(ii) in a case where a poll is demanded in accordance with the following provisions of this paragraph on the question whether the amendment shall be submitted to the Minister, if a poll on that question has been taken and the result thereof shows that the requisite majority of registered producers has voted in favour of the submission of the amendment ;

1ST SCH.
—cont.

- (b) for the purpose of this paragraph a poll may, within the prescribed time from the publication of the amendment as aforesaid, be demanded by the prescribed number or the prescribed proportion, as the case may be, of the registered producers;
- (c) where an amendment is duly submitted to the Minister as aforesaid the provisions of subsections (3), (4), (5), (6), and (8) of section one of this Act shall apply with respect to the amendment as they apply with respect to a scheme, subject to the following modifications of the said subsection (8), namely,—
- (i) the words “is satisfied that the amendment will conduce to the more efficient operation of the scheme” shall be substituted for the words “is satisfied that the scheme will conduce to the more efficient production and marketing of the regulated product”; and
 - (ii) except in a case where the Minister is required to direct a public inquiry to be held under the provisions of proviso (a) to the said subsection (5), the provisions requiring the draft to be laid before Parliament and the approval of the draft by each House of Parliament before the Minister approves a scheme shall not apply;
- (d) for the purpose of this paragraph the expression “the requisite majority” means—
- (i) not less than two-thirds of the total number of registered producers voting on the poll; and
 - (ii) registered producers who are capable of producing not less than two-thirds of the quantity of the regulated product which all the registered producers voting on the poll are capable of producing.

2. If a demand for a poll on the question whether a scheme shall be revoked is made to the board in the prescribed manner and by the prescribed number or the prescribed proportion, as the case may be, of the registered producers, the board shall forthwith cause a poll of the registered producers to be taken on that question, and if the result of the poll shows that there have voted in favour of the revocation of the scheme—

- (a) more than half the total number of registered producers voting on the poll; and
- (b) registered producers who are capable of producing more than half the quantity of the regulated product which all the registered producers voting on the poll are capable of producing;

1ST SCH.
—cont.

the board shall, as soon as practicable after the declaration of the result of the poll, communicate the result thereof to the Minister, and the Minister shall thereupon by order revoke the scheme :

Provided that, without the consent of the board, no poll shall be taken under this paragraph—

- (i) in the case of a scheme other than a substitutional scheme, within two years from the date of the declaration of the result of the initial poll ; or
- (ii) in the case of any scheme, within the prescribed period from the date of the declaration of the result of any previous poll taken under this paragraph.

3. For the purpose of the last two foregoing paragraphs the expression “ prescribed ” means prescribed by the scheme.

4. A scheme may be revoked by a subsequent scheme, and where a scheme is so revoked the subsequent scheme may provide for the transfer to the new board of the whole or any part of the property, rights and liabilities of the existing board, for the continuation by or against the new board of any legal proceedings pending by or against the existing board, and for the dissolution, without winding up, of the existing board.

In this paragraph the expression “ new board ” means the board administering the subsequent scheme, and the expression “ existing board ” means the board administering the scheme revoked.

5. The Minister shall by order revoke a scheme if an order is made for the winding up of the board.

6. Without prejudice to any other powers conferred on him by this Act, the Minister, if he is of opinion that any provision of a scheme or any act or omission of a board administering a scheme is contrary to the interest of consumers of the regulated product, or is contrary to the interest of a substantial number of persons affected by the scheme and is not in the public interest, may lay before each House of Parliament the draft of an order revoking the scheme, and if each House resolves that the order shall be approved, the Minister shall make the order to take effect on such date after the passing of the last of the resolutions of approval as may be specified in the order.

7. The board administering a scheme shall not be deemed to be dissolved by reason only that the scheme has been revoked, and (except in a case where the board is dissolved without winding up under paragraph 4 of this Part of this

Schedule) so much of the scheme as relates to the winding up of the board shall continue in force notwithstanding the revocation.

1ST SCH.
—*cont.*

8. Where a scheme is revoked, or is so amended as to revoke any provision thereof, subsection (2) of section thirty-eight of the Interpretation Act, 1889, (which relates to the effect of repeals) shall apply as if the revocation of the scheme or of that provision, as the case may be, were the repeal of an enactment by another Act.

52 & 53 Vict.
c. 63.

SECOND SCHEDULE.

Section 2.

PROVISIONS AS TO THE INCORPORATION, REGISTRATION, AND WINDING UP OF BOARDS.

1. The board shall be constituted by the scheme as a body corporate with a common seal and power to hold land without licence in mortmain.

2. The scheme shall provide for notification to the Minister of the address of the office of the board at which communications and notices will at all times be received, and of any change in that address, and the Minister shall cause a register to be kept showing the address of every board, and the register shall be open for inspection by the public at such times and at such place as he may direct.

3. The scheme shall provide for the winding up of the board, and for that purpose may apply Part X of the Companies Act, 1929, subject to the modifications hereafter set out in this Schedule.

4. For the purpose of section three hundred and thirty-eight of the Companies Act, 1929, the principal place of business of the board shall be deemed to be the office of the board registered by the Minister under this Act.

5. Sub-paragraph (ii) of paragraph (e) of subsection (1) of section three hundred and thirty-eight of the Companies Act 1929, shall not apply, and sub-paragraph (iii) of that paragraph shall apply as if the words "or any member thereof as such" were omitted.

6. A petition for winding up a board may be presented by the Minister as well as by any person authorised under the provisions of the Companies Act, 1929, to present a petition for winding up a company.

2ND SCH.
—cont.

7. In the event of the winding up of a board, every person who, at any time during the relevant period, was a registered producer shall be liable to contribute to the payment of the debts and liabilities of the board and to the payment of the costs and expenses of the winding up an amount assessed in such manner and subject to such limitations as may be provided by the scheme, but save as aforesaid no person shall be liable to contribute to the assets of the board in the winding-up by reason only of his being or having been a registered producer or a member of the board.

8. In the last foregoing paragraph the expression "the relevant period" means—

- (a) in a case where, before the commencement of the winding up, the scheme has been revoked, the year immediately before the revocation of the scheme;
- (b) in any other case, the year immediately before the commencement of the winding up.

Section 6.

THIRD SCHEDULE.

ADDITIONAL MATTERS FOR WHICH SCHEMES MUST PROVIDE.

1. As to the accounts to be kept by the board, and as to the audit of such accounts.

2. As to the furnishing by the board to the Minister and to registered producers of accounts, returns and other information, including an annual balance sheet and either an annual profit and loss account or, in the case of a board which does not trade for profit, an annual income and expenditure account.

3. As to the manner in which the moneys of the board may be invested.

4. As to the furnishing by the board of a copy of the balance sheets of the board to any person requiring it.

5. As to the removal from the register of producers of the names of persons who have ceased to be producers or are exempted from registration.
